

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TODD GEORGOPAPADAKOS,

Petitioner

VS.

TANYA GEORGOPAPADAKOS,

Respondent

) Case Number: FDI-22-796813

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATION OF MARITAL STATUS (FAMILY CODE 2237);
REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES
AND COSTS, PROPERTY CONTROL, ENFORCEMENT OF STATEMENT OF DECISION; FAMILY
CODE 1101/2122 REMEDIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Todd Georgopapadakos (Husband) and Respondent Tanya Georgopapadakos (Wife)
married on 6/9/1996. The parties have one adult daughter. Their son passed away from cancer in
2018 at age 15.
- 2) Per the Findings and Order filed 8/10/2023, the Court awarded \$1,647 per month in temporary
guideline spousal support (which was based on an imputation of \$2,600 per month of fulltime
minimum wage income to Wife).
- 3) On 3/26/2025, following a three-afternoon long-cause hearing which occurred on 1/28/2025,
1/30/2025, 2/6/2025, the Honorable Judge Costin issued a Final Statement of Decision regarding
Breach of Fiduciary Duty; Division of Property; Permanent Spousal Support; and Husband's

1 Request for Family Code section 271 attorney's fees sanctions. The Final Statement of Decision
2 provides in relevant part:

- 3 a. "The present order for temporary spousal support (\$1,647 per month) shall remain in
4 effect until after the parties' marital status is terminated."
- 5 b. "After Judgment terminating status is entered, the Court sets long term support at
6 \$1,500.00 per month. This amount is, of course, in addition to the asset distributions from
7 the solar businesses..." Judge Costin made this permanent spousal support award after
8 considering the Family Code section 4320 factors, including that Wife historically had a
9 successful business selling sculptures, she has not been employed since the date of
10 separation, Wife testified she could earn \$60,000 annually "with effort," Wife lives in her
11 father's basement and Wife performs work for her father in exchange for room and
12 board, and Wife suffers from abdominal migraines.
- 13 c. Judge Costin's Statement of Decision mentions five businesses, Green Island LLC
14 (GIFT), Hawaii PV Partners LLC (PVP), SafeConnect, Distributed Energy Partners LLC
15 (DEP), Dep Fit Energy LLC (DEP FIT), and Black Sands Publishing/Chromaco. The
16 Court made the following findings regarding each of the business.
- 17 d. For GIFT and PVP, Judge Costin found that Husband was expelled from these businesses
18 at least in part due to Wife's threatening communications with partners of those
19 businesses and that Wife's conduct constituted a breach of fiduciary duty to the
20 community. Judge Costin stated that if Husband is not reinstated to GIFT and PVP and
21 instead "receives only a buyout value," Husband would be entitled to 60% of any funds
22 received from the buyout and Wife would receive 40% of any funds received from the
23 buyout and this allocation is a remedy for Wife's breach of fiduciary to the community.
24 If, however, Husband is reinstated to GIFT and PVP (or if they elect that Husband retain
25 his full economic interest in the company), then each party is entitled to receive 50% of
26 payments from those businesses.
- 27 e. Judge Costin awarded Husband 100% of SafeConnect as a remedy and sanction for
28 Wife's breach of fiduciary duty.
29

- f. Judge Costin found that Wife should be awarded 50% of the community property share of DEP and DEP FIT from the date of separation, including 50% of all distributions not used to cover taxes related to DEP and DEP FIT.
 - g. Judge Costin found that Wife does not have any business ownership interests nor business partnership interests in any of the solar businesses and she is not legally entitled to operate or manage those businesses
 - h. Judge Costin stated she was not provided with sufficient information to value the parties' interest (if any) in Black Sands Publishing / Chromaco.
 - i. Husband was awarded \$50,000 in Family Code section 271 attorney's fees sanctions, to be paid by Wife at a rate of \$500 per month as a deduction from Wife's monthly spousal support.
 - j. Judge Costin stated, "The Court notes it was not tasked at this long cause evidentiary hearing with valuation or division of the entirety of the parties' other assets and debts... The parties still need to reach agreement or schedule an additional trial for the Court to adjudicate any remaining issues."
- 4) The Court notes that the Income and Expense Declaration filed by Husband prior to the trial before Judge Costin includes the following income information for Husband: \$1,042 in average monthly salary or wages, \$1,632 per month in businesses distributions, and \$9,950 per month in average monthly self-employment income from his consulting businesses (but the month prior Husband earned \$14,500 in self-employment income).
- 5) On 2/19/2026, the Honorable Judge Mori entered a Judgment which incorporated Judge Costin's Final Statement of Decision, with a reservation of the Court's jurisdiction "over all issues not addressed in the Final Statement of Decision."
- 6) Neither Judge Costin's Statement of Decision, nor the Judgment terminate the parties' marital status.
- 7) On 4/15/2026, Wife's Request for Order filed 4/15/2026 seeking the following orders:
 - a. Set temporary spousal support of \$7,181 per month, based on Husband's total income from all sources ("at minimum \$25,647/month per his own bank declaration") until the property division is complete.

- b. Remove the \$5,000/month earning capacity imputation to Wife. Wife states her present circumstances make the imputation untenable, writing, “I was the primary caregiver for our terminally ill son Xander until his death. I am still grieving. In June 2025, I suffered a stroke and am under active neurology care... I am on Medicaid and SNAP. I cannot afford rent in Honolulu or San Francisco.”
- c. Address the \$500/month FC § 271 sanction offset.
- d. Order Husband to pay Wife’s share of all distributions from GIFT, HPVP, DEP, DEP FIT Energy, DEP/APB JV, and all related entities retroactive to March 26, 2025.
- e. Order Husband to file an Income and Expense Declaration with Bank Statements.
- f. Order Husband to file a complete Income and Expense Declaration with all supporting documents within 15 days.
- g. Neutral CPA + Records. Order all K-1s, tax returns, bank statements, and distribution records for 2021–2025 produced to a neutral CPA within 30 days.
- h. Order Husband and all entities he controls to cease new capital investments or reinvestments using community funds without prior court approval.
- i. Set a hearing on valuation of all community business interests.
- j. Set aside both FL-144s under FC § 2122 (duress, fraud, perjury, failure to disclose).
- k. Deny request to protect business partners from civil lawsuits.
- l. Order Husband to pay fees under FC §§ 2030, 2032, and sanctions under FC § 271.
- m. Order the in-kind transfer of the Waianae solar farm including all land, buildings, solar equipment, and HECO FIT contracts.
- n. Calendar for full evidentiary hearing. Award 50% penalty (FC § 1101(g)) or 100% (FC § 1101(h)) on all fraudulently concealed assets.
- o. Retain jurisdiction until Husband has fully complied with the SOD and every order of this Court.
- p. Other and further relief as the Court may deem just and proper.
- 8) On 4/17/2026, Wife filed a Memorandum of Points and Authorities.
- 9) On 6/1/2026 and 6/5/2026, Husband filed duplicate Responsive Declarations asking the Court to deny all of Wife’s requests. Husband states, “As set forth in Petitioner’s Reply Declaration, every

1 issue Respondent raises was adjudicated at the trial before Judge Anne Costin, addressed in the
2 Final Statement of Decision filed March 26, 2025, or resolved by the Judgment (FL-180) that
3 Respondent voluntarily signed on October 20, 2025. Respondent presents no new facts
4 warranting modification or reconsideration.” Husband is referring to his Reply Declaration filed
5 on 6/5/2026 for his Request for Order filed 4/10/2026 (which was adjudicated on 6/9/2026). The
6 Court notes there is no Judgment signed by Wife on 10/20/2025 attached to his Reply Declaration
7 filed 6/5/2026 or his Request for Order filed 4/10/2026.

8 10) On 6/9/2026 (per the Findings and Order After Hearing filed 6/11/2026), Judge Chan denied
9 Husband’s Request for Order filed 4/10/2026 wherein Husband asked the Court to terminate the
10 parties’ marital status and confirm all issues had been resolved. Judge Chan found that final
11 orders regarding the entirety of the parties’ community estate have not yet been made and denied
12 Husband’s requests without prejudice to the Court’s ability to adjudicate this request at trial.

13 11) On 6/9/2026, Husband filed a pleading entitled Notice of Motion and Motion for Reconsideration
14 of Order Dated July 9, 2026, but did not file a Request for Order (FL-300).

15 12) The prior 6/16/2026 hearing on Wife’s 4/15/2026 Request for Order was continued to 7/21/2026
16 by Visiting Judge Cindee Mayfield on the Court’s own motion.

17 13) On 6/26/2026, Husband filed a Supplemental Declaration clarifying that Wife did not sign a
18 Judgment on 10/20/2025. Rather, “What Respondent signed on October 20, 2025, was the FL-
19 144...In addition to signing the FL-144, Respondent sent an email on October 20, 2025
20 confirming her agreement to the entire Judgment package.”

21 14) On 7/9/2026, Wife filed a Declaration stating she suffered a stroke in June 2025 and that the
22 imputation of income to her is no longer tenable. Wife requests the following relief: order an in-
23 kind distribution of a 7.57-acre solar farm (including its FIT contracts and equipment) as her
24 share of the community property and, if the Court declines to order the transfer, appoint a
25 receiver, award \$7,181 per month in spousal support, and order the receiver to distribute all
26 withheld community distributions, including allegedly undisclosed assets. Wife argues Husband
27 has failed to comply with the Statement of Decision by omitting a valuable company (Distributed
28 Energy Partners LLC), filing a Final Declaration of Disclosure stating all issues were resolved
29 despite her objection, and refusing to transfer property as ordered. Wife states Husband has

1 presented inconsistent valuations of the community business interests to different audiences,
2 making his valuations unreliable and demonstrating that the only effective remedy is a court-
3 ordered in-kind transfer of property.

4 15) On 7/17/2026, Husband filed a Declaration stating Wife's declaration is an untimely opposition
5 under Code of Civil Procedure section 1005(b). Husband also states that every issue Wife raises
6 has already been adjudicated. Husband writes, "Petitioner contends that he has fully complied
7 with the Judgment and Statement of Decision with respect to the three remaining community
8 assets—DEP, Hawaii PV Partners, and Green Island FIT. He states that each asset is subject to an
9 executed buyout agreement establishing a payment schedule, copies of which have been provided
10 to both Respondent and the Court, and that all required payments have been made on time, in
11 most instances well within the 30-day period prescribed by the Judgment. Petitioner argues that
12 neither the Judgment nor the Statement of Decision requires any transfer of ownership interests
13 beyond the agreed-upon buyout payments, that the DEP loan is being repaid according to
14 schedule, and that there are no undisclosed assets. Petitioner further argues that Respondent's
15 claim he is in breach of the Statement of Decision by failing to transfer ownership interests
16 fundamentally mischaracterizes the Court's ruling, which provided that Respondent would receive
17 her share through buyout payments rather than direct ownership. Petitioner also disputes
18 Respondent's assertion that she was induced into signing the FL-144 and judgment package
19 through false promises, arguing that Respondent voluntarily signed the documents after asking
20 questions about the assets, discussing the matter with both Petitioner and the parties' daughter,
21 and receiving answers to her questions. Petitioner maintains that no promises or conditions were
22 made beyond the terms contained in the signed documents and that Respondent has presented no
23 evidence, other than her own assertions, to support her claim that her agreement was induced by
24 any promise or misrepresentation."

25 16) At the prior 7/21/2026 hearing, the Court stated it would hear property issues at a future trial and
26 continued the hearing to 8/11/2026 on Wife's request to modify spousal support. The Court also
27 ordered the parties to file updated Income and Expense Declarations.

28 17) On 7/28/2026, Wife filed an Income and Expense Declaration. Wife states she receives \$1,000
29 per month in spousal support in addition to "irregular" community property distributions (Wife

1 states she received \$5,104.16 in community property distributions last month). Wife estimates her
2 monthly expenses total \$5,791 which includes \$2,100 per month for rent. Attached to Wife's
3 Income and Expense Declaration is a statement by Wife wherein Wife states she is not asking the
4 Court to relitigate or modify the Statement of Decision; she is asking the Court to enforce it (yet
5 Wife also requests guideline temporary spousal support which Wife states should be \$7,181 per
6 month based on Husband's alleged income). Wife states distributions from the community
7 businesses are erratic and unpredictable, are not supported by documentation, and sometimes
8 Husband unilaterally deducts funds from Wife's share of the distributions. Wife states she cannot
9 obtain housing because a landlord requires proof of consistent income. Wife also states that she
10 suffered a stroke in May 2026 (the Court notes Wife states she suffered a stroke in her previously
11 filed pleadings in June 2025). Wife states she is in weekly physical therapy for stroke
12 rehabilitation through at least 9/18/2026 and her SSDI application is pending federal
13 determination. Wife states she cannot work. Wife also requests that the Court order Husband to
14 produce his current K-1 schedules for all community entities, six months of DEP LLC bank
15 statements showing all distributions and payments to or on behalf of Husband, six months of
16 Husband's personal bank statements, and a written distribution schedule so that Wife can obtain
17 housing. Wife attached a summary of her doctor visit on 7/17/2026 which includes a statement
18 that an "incidental left vertebral artery dissection was identified on June 27, 2025, treated with
19 aspirin for 6 months through January 2026, and remains stable on repeat CTA from May 14,
20 2026... No further imaging or intervention required... Regarding migraines, she reports pain
21 about 5 days per month with a pulling sensation on the left side of the neck associated with light
22 sensitivity and sound sensitivity, without nausea. These episodes have not rolled into a migraine
23 in a while and usually improve if she stops working on the computer, reduces stress, and goes
24 hiking. She has not been taking migraine medications regularly because she is typically able to
25 back off triggers and symptoms subside on their own, but she remains concerned about severe
26 recurrence, especially with travel given a prior prolonged episode after flying..." The Court notes
27 there is no mention in the doctor's not regarding her ability to work or "weekly physical therapy
28 for stroke rehabilitation."
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1 18) On 7/28/2026, Husband filed an Income and Expense Declaration. Husband reports the following
2 income: \$2,606 per month in average monthly distributions from GIFT, HPVP and DEP, as well
3 as \$14,650 per month in self-employment income for healthcare consulting (Husband states he
4 has been a healthcare consultant since April 2024).

5 19) On 7/28/2026, Husband filed a Responsive Declaration. Husband states Wife has not
6 demonstrated a material change in circumstances. Husband states Wife failed to attach
7 exculpatory evidence, including a summary of a medical appointment attended by Wife on
8 7/28/2025 wherein Wife's doctor stated that the vertebral artery finding was likely an old injury
9 from prior neck trauma and not a new cerebrovascular event. Husband also states that between
10 April 2025 and April 2026, Wife received \$48,934.16 in distributions from the community
11 businesses, in addition to \$12,000 in court-ordered spousal support, and these payments average
12 out to approximately \$5,000 per month. Husband also states that in the last two years before
13 separation, Wife earned approximately \$50,000 per year working part time. Husband states Wife
14 is claiming she cannot obtain employment based on a medical condition her doctors say does not
15 exist. Husband requests additional sanctions under Family Code section 271 for Wife's bringing
16 an unsupported request. Husband provides the following additional information and attached
17 exhibits to support his statements:

- 18 a. "Hawaii PV Partners (HPVP): HPVP has paid \$102,653 to date, with \$282,346.79
19 remaining. Respondent receives 40% of all payments. HPVP pays approximately 6% of
20 net profit annually; the most recent distribution exceeded the required amount."
- 21 b. "Green Island FIT LLC (GIFT): Petitioner negotiated a buyout settlement of \$1,471,787,
22 significantly above the fair market value of approximately \$1,000,000 established at trial.
23 \$25,000 has already been received. Petitioner expects a minimum of \$25,000 more before
24 year-end. The main project leases finish repaying this year, which will increase free cash
25 flow and accelerate payments. The full amount is expected to be paid within five years.
26 \$200,000 of the settlement is held in reserve against costs arising from Respondent's
27 continued threats of legal action against the GIFT members. Respondent refuses to sign a
28 release that would remove this reserve and accelerate payment to both parties. If
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Respondent does not sign the release, the reserve will delay full payment by an additional three years.”

- c. “DEP FIT Energy LLC: DEP owns a 49% interest in a \$2,577,198.18 loan receivable from Green Island FIT LLC, plus two small solar farms. Petitioner's 40% share of DEP makes the parties' combined interest \$505,130.84, plus interest. Petitioner negotiated a revised loan agreement at 3.72% interest with fully amortizing payments beginning January 2027, plus quarterly disbursements of all cash received in excess of a \$5,000 operating buffer. The Q2 2026 payment was \$10,208.32. Respondent receives 50% of all DEP payments. Q3 and Q4 payments are expected to be the same or larger, and Q1 2027 and beyond payments are expected to increase significantly as the GIFT loan begins fully amortizing. Petitioner handles all payments by sending Respondent a photograph of the check received along with a calculation of her share, and promptly remits her portion via Zelle or wire — well in advance of the 30-day requirement in the Judgment.”
- d. “Aina Haina Property (Hawaii): The parties hold a small minority interest due to an investment in real property in Aina Haina, Hawaii. The property sale has been approved by the Honolulu City Council for \$7,000,000, subject to appraisal, and is expected to close by December 2026. The parties' share will yield approximately \$200,000–\$300,000. Respondent is entitled to 50%.”
- e. “Black Sand Publishing / Chromaco: This asset was specifically reserved in Section C of the Final Statement of Decision filed March 26, 2025. Black Sand Publishing was shut down at a loss. Both Petitioner and the other owner, Larry McCarthy, offered to transfer full ownership of the company to Respondent free and clear, with no impact on other assets. Respondent declined. Mr. McCarthy subsequently sold the remaining assets at a loss and closed the business. A complete accounting was provided to Respondent in April 2024. Petitioner received no money from the shutdown—and in fact received no money at all from Black Sand for approximately nine to ten years, nor held any operational or management role during that time. The closure may result in negative tax implications from the loss, which Petitioner is willing to absorb entirely even though they should rightfully be shared.”

1 f. “No Other Unresolved Assets: The small real estate interest in Aina Haina and Black
2 Sand were the only issues not resolved at trial. There are no other community property
3 assets or issues to resolve. This is the entirety of the community estate. Respondent's own
4 filings raise no other issues. She continues to attempt to relitigate the Judgment.”

5 g. “In sum, Respondent is about to receive well in excess of \$1,000,000 in asset payments
6 over the next five years — or eight years if Respondent does not sign the release — as
7 well as quarterly DEP distributions (the next payment is expected in early October 2026),
8 ongoing GIFT and HPVP buyout payments, plus the Aina Haina proceeds of \$100,000–
9 \$150,000 (her 50%) before December 2026. This does not include the spousal support
10 she continues to receive. Respondent's financial position does not constitute an
11 emergency warranting modification of the support set at trial.”

12 20) On 7/21/2026, Husband filed a Request for Order seeking to bifurcate and terminate the parties’
13 marital status. The hearing on Husband’s 7/21/2026 Request for Order is also set for
14 8/11/2026. Husband states, “Neither party currently receives health insurance through the other.
15 Both parties have maintained their own separate health insurance since June 2024, when
16 Petitioner was expelled from the Hawaii PV Partners... Bifurcation will therefore not affect either
17 party's health insurance coverage... Neither party has pension, retirement, or deferred
18 compensation benefits other than Social Security, the rights to which are governed by federal law
19 and are not affected by the timing of a state court judgment of dissolution... Bifurcation serves
20 the interests of justice. If the Court determines that any financial issues require further
21 adjudication—whether raised by Respondent's pending Request for Order under Family Code
22 section 2122 or otherwise—those issues can and should be resolved separately from marital
23 status. There is no reason for the parties to remain legally married while financial disputes are
24 litigated.”

25 21) Per the Proof of Service filed 7/21/2026, Husband’s Request for Order was emailed to Wife on
26 7/21/2026.

27 22) Wife did not file a Responsive Declaration to Husband’s 7/21/2026 request to bifurcate and
28 terminate marital status.
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1 **B. Findings and Order**

- 2 1) The Court will not consider the statements of Dr. Michael Duick quoted by Husband in his
3 7/28/2026 Responsive Declaration nor the declaration Husband filed on Mr. Duick's behalf on
4 7/28/2026, as those statements are hearsay.
- 5 2) The medical records submitted by the parties do not reflect a diagnosis that Wife suffered a stroke
6 in June 2025 or May 2026. The medical records also do not reflect any recommendation by a
7 medical professional that Wife is unable to work. The Court does not find that a material change
8 in circumstance has occurred warranting modification of the support orders set forth in Judge
9 Costin's 3/26/2025 Statement of Decision, and Wife's request to modify the current support
10 orders is denied.
- 11 3) Husband's request for additional Family Code section 271 attorney's fees sanctions is denied.
- 12 4) Husband's 7/21/2026 Request for Order to bifurcate and terminate marital status was not served
13 at least 16 Court days prior to the 8/11/2026 hearing as required under Code of Civil Procedure
14 section 1005(b). To provide additional time to Wife to file a Responsive Declaration, the hearing
15 on Husband's request to bifurcate and terminate marital status is hereby continued to **Tuesday,**
16 **10/13/2026 at 9:00 AM in Dept. 404.** By the deadlines set forth in the Code of Civil Procedure,
17 Wife may file a Responsive Declaration to Husband's request and Husband may file a Reply
18 Declaration.
- 19 5) The Court will prepare the Findings and Order After Hearing.
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